

25NNCV00511 25NNCV00511

County: los-angeles

Division: Civil Law and Motion

Department: A

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Case Number: 25NNCV00511 Hearing Date: July 10, 2026 Dept: A

MOTIONS

TO COMPEL RESPONSES

Los Angeles Superior Court

Case # 25NNCV00511

MP: Defendant

Cameron Properties, Inc.

RP: No

opposition received

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email at or by telephone at (818) 260-8412.

MOTIONS ON CALENDAR:

On March 27, 2026, Cameron Properties, Inc. ("Defendant") filed two motions to compel Crystal Lino's ("Plaintiff") initial responses to: (1) Form Interrogatories ("FROG") and Special Interrogatories ("SROG"); and (2) Request for Production of Documents ("RPD"). The Court is not in receipt of an opposition brief. The Court notes that, pursuant to C.R.C. Rule 8.54(c), a failure to oppose a motion may be deemed consent to its being granted.

LEGAL STANDARD:

If a party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling response and for a monetary sanction. (C.C.P. § 2030.290(b).) The statute contains no time limit for a motion to compel where no responses have been served. All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (See *Leach v. Superior Court* (1980) 111 Cal. App. 3d 902, 905-906.)

Where there has been no timely response to a demand to produce documents, the demanding party may seek an order compelling a response. (C.C.P. § 2031.300(b).) Failure to timely respond waives all objections, including privilege and work product. (C.C.P. § 2031.300(a).) Thus, unless the party to whom the demand was directed obtains relief from waiver, he or she cannot raise objections to the documents demanded. There is no deadline for a motion to compel responses. Likewise, for failure to respond, the moving party need not attempt to resolve the matter outside court before filing the motion.

ANALYSIS:

A.

Discussion

On December 16, 2025, Defendant served the discovery requests, such that responses were due by January 20, 2026. Plaintiff did not request an extension, and on February 3, 2026, defense counsel informed Plaintiff's counsel responses would be required if the parties could not reach a settlement. Plaintiff's counsel responded a week later stating that there would be no problem getting the settlement done. Subsequently Plaintiff's counsel ceased

responding to calls and emails.

On March 16, 2026, defense counsel sent another email advising that Motions to Compel would be filed and Plaintiff's objections were waived. (Gluck Decl., ¶¶2-6.) As of the filing of the motions, Plaintiff has not responded.

Defendant's unopposed motions to compel responses to the FROG, SROG, and RPD are granted pursuant to C.C.P. §§ 2030.290 and 2031.300. Plaintiff is ordered to provide verified responses to the discovery requests, without objections, within 30 days of this order.

B.

Sanctions

The Court has discretion to impose a monetary sanction against a party engaging in the misuse of the discovery process, or any attorney advising that conduct. (C.C.P. § 2023.030(a).) Sanctions are only mandatory as against a party who unsuccessfully makes or opposes a motion to compel a response to interrogatories or RPD, unless the Court finds they acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (C.C.P. §§ 2030.290(c) & 2031.300(c).) Regardless, it is customary to grant sanctions where a party has filed a motion to compel, and the other party fails to file an opposition. (C.R.C. Rule 3.1348(a).)

Defendant requests \$2,652.50 in sanctions for the Interrogatory Motion and \$857.50 for the RPD Motion against Plaintiff. For the Interrogatory Motion, defense counsel Richard D. Gluck states that he spent 3.3 hours on the motion at \$725/hour, his colleague Dakota Hickingbottom spent 0.5 hour finalizing it at \$400/hour; anticipates 2 hours preparing the reply at his rate; and \$60 in filing fees. (Gluck Interrogatory Decl., ¶7.) For the RPD Motion, Mr. Gluck states that he spent 1.1 hours on the motion; anticipates 2 hours preparing the reply at his rate; and \$60 in filing fees. (Gluck RPD Decl., ¶7.) The Court notes that the notices of motion and memorandums of points and authorities do not direct the sanctions requests against Plaintiff's counsel.

The request for sanctions is denied. Defendant's notice of motion asks only for sanctions against Plaintiff but not against Plaintiff's counsel. C.C.P. § 2023.040 requires that the party

requesting sanctions “identify every person, party, and attorney against whom the sanction is sought,” and Defendant has failed to provide the Court with facts supporting that Plaintiff was responsible for the lack of responses (it appears the communications were solely between counsel). Since no sanctions were noticed against Plaintiff’s counsel, sanctions against Plaintiff’s counsel under C.C.P. § 2023.040 would be improper; Defendant’s request for sanctions is denied.

RULING:

In the event the parties submit on this tentative ruling, or a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court’s records.

ORDER

Defendant Cameron Properties, Inc.’s Motions to Compel Responses came on regularly for hearing on July 10, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

THE MOTIONS TO COMPEL PLAINTIFF’S RESPONSES TO FORM INTERROGATORIES, SPECIAL INTERROGATORIES, AND REQUESTS FOR PRODUCTION OF DOCUMENTS ARE GRANTED. RESPONSES ARE TO BE MADE WITHIN 30 DAYS.

MONETARY SANCTIONS
ARE DENIED

DEFENDANT TO PROVIDE NOTICE.

IT IS SO ORDERED.